

Smt. Sushila Pandey v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 17 February 2023 · WRIT - C No. 2778 of 2023 · **Writ disposed; theft demand withdrawn; fresh order under the Supply Code.**

HEADNOTE

A writ to quash a 17.11.2022 demand notice for electricity-theft dues was disposed of after the licensee stated that the notice stood withdrawn and that a fresh order would be passed after hearing. The Court left the respondents at liberty to pass that order strictly in accordance with the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Smt. Sushila Pandey filed Writ-C No. 2778 of 2023 in the Allahabad High Court against the State of U.P. and two others, seeking to quash respondent no. 3's demand notice dated 17 November 2022 for electricity-theft dues. She said recovery had begun without a provisional assessment notice or a final assessment order. On 27 January 2023 counsel for the electricity department sought time for instructions. On 6 February 2023 the Court adjourned the case and ordered respondent no. 3 to attend with the records if instructions were still not ready.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.2

Theft-dues demand and fresh assessment

HOLDING

On the licensee's statement that the demand notice dated 17.11.2022 for electricity-theft dues stood withdrawn and that a fresh order would be passed after an opportunity of hearing, the writ was disposed of with liberty to the respondents to pass that order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005. ¶ 3

PRINCIPLE TAGS

fresh-order-under-supply-code

Where the licensee withdraws a theft-dues demand and undertakes to pass a fresh order after hearing, the writ is disposed with liberty to do so strictly in accordance with the Electricity Supply Code, 2005, without a merits finding on the withdrawn notice. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 17.11.2022 WAS PRECEDED BY A PROVISIONAL ASSESSMENT NOTICE AND A FINAL ASSESSMENT ORDER, AND WHAT SUM IF ANY IS RECOVERABLE FOR THE ALLEGED THEFT

The notice was withdrawn. Any fresh order, after hearing, was left to the procedure under the Supply Code. ¶ 3